

23AHCV02028 23AHCV02028

County: los-angeles
Division: Civil Law and Motion
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Motion: PLAINTIFF'S MOTION TO TAX COSTS
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Case Number: 23AHCV02028 Hearing Date: September 23, 2026 Dept: 3

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHEAST
DISTRICT

THOMAS
TRAN,

Plaintiff(s),

vs.

LI LIN,
et al.,

Defendant(s).

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CASE NO.: 23AHCv02028

[TENTATIVE]

ORDER RE: PLAINTIFF'S MOTION TO TAX COSTS

Dept.

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8:30

a.m.

September

23, 2026

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I.

INTRODUCTION

Plaintiff Thomas Tran ("Tran") moves to strike or tax the memorandum of costs filed by defendant Li Lin("Lin") on July 30, 2026. The memorandum claims costs of \$5,324.18, consisting of three line items: (1) \$2,212.67 for "court-ordered transcripts", (2) \$1,070.94 in filing and motion fees, and (3) \$2,040.57 for "Other."

Li filed an opposition brief on September 10, 2026.

Tran filed a reply brief on September 14, 2026.

II.

LEGAL

STANDARD

The memorandum of costs is a verified statement by the party, attorney, or agent that the costs are correct and were necessarily incurred in the case. (Cal. Rules of Court, rule 3.1700(a)(1).) If the items on a verified cost bill appear to be proper charges, they are prima facie evidence that the costs, expenses, and services listed therein were necessarily incurred. (Oak Grove School Dist. v. City Title Insurance Co. (1963) 217 Cal.App.2d 678, 698.) “[T]he trial court’s first determination is whether the statute expressly allows the particular item and whether it appears proper on its face; if so, the burden is on the objecting party to show the costs to be unnecessary or unreasonable.” (Foothill-DeAnza Community College Dist. v. Emerich (2007) 158 Cal.App.4th 11, 29 (Foothill-DeAnza).)

III.

DISCUSSION

Tran argues that Lin’s memorandum of costs improperly claims \$2,212.67 for transcripts that were not ordered by the Court. (Code Civ. Proc., § 1033.5, subd. (b)(5).

In opposition, Lin argues that the Court ordered specific transcripts to be submitted along with the Closing trial binder and submits a copy of said Order. The Order required the parties to submit the page of the reporter’s transcript as a numbered appendix to their written closing arguments if their arguments referred to any trial testimony or exhibits. The practical effect of this Order directed the parties to order transcripts. Accordingly, the cost for the transcripts is allowable.

Next, Tran challenges Lin’s claim for \$2,040.57 in “Other” charges. Lin’s opposition includes a collection of unauthenticated receipts, without any supporting declaration, along with a document entitled “Cost Calculation.” (Opp., Ex. E.) The first line of the second page of Exhibit E identifies “Other costs” as “binder, driving, trial costs, lodging fees

\$2,040.57", but without any accompanying declaration showing that these expenses were necessary to the litigation or reasonably incurred, the evidence is inadmissible.

Last, while Tran's moving papers sought to tax Lin's claimed costs for filing fees, the reply brief omits any discussion of this and the Court considers this issue is withdrawn.

IV.

CONCLUSION

In light of the foregoing, the Court GRANTS Tran's motion to tax in part and taxes Lin's memorandum of costs in the amount of \$2,040.57, leaving an award of costs in the amount of \$4,253.24.

Dated
this 23rd
day of September 2026

William A.
Crowfoot

Judge of the Superior Court

Parties who intend to submit on this tentative must send an email to the Court at ALHDEPT3@lacourt.org indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court may, at its discretion, adopt the tentative as the final order or place the motion off calendar.